

02:00 PM

24-CIV-01784 NATALIYA BANKOVA, ET AL. VS. SAMUEL MARTINEZ

LINE 6

NATALIYA BANKOVA
SAMUEL MARTINEZ

JUAN M. SIMON
IVAN F. HIGUERA

DEFENDANT: SAMUEL MARTINEZ'S MOTION FOR ORDER DEEMING ADMITTED MATTERS SPECIFIED IN REQUESTS FOR ADMISSION (SET ONE) AND FOR MONETARY SANCTIONS [C.C.P. 2033.280]

TENTATIVE RULING:

Please refer to the tentative ruling for Line 5, which is hereby incorporated by reference and serves as the tentative ruling for Line 6.

02:00 PM

25-CIV-08165 CASTULO EDEN VERDUZCO MARTINEZ VS. X-PRESS GLAZING LLC, ET AL.
LINE 7

CASTULO EDEN VERDUZCO MARTINEZ
X-PRESS GLAZING LLC A CALIFORNIA LIMITED LIABILITY COMPANY

ANNA COUGHLIN

DEFENDANT: APOLONIO RAMOS'S MOTION TO QUASH SERVICE OF SUMMONS

TENTATIVE RULING:

Defendant Apolonio Avendanos Ramos' Motion to Quash Service of Summons is DENIED for the reasons provided below.

"Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction." (*Rios v. Singh* (2021) 65 Cal.App.5th 871, 880; see *Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152.) A defendant may challenge a purported attempt to serve process and move to quash service of summons. (Code of Civ. Proc., § 418.10, subd. (a)(1).) On such a motion, the plaintiff bears the burden of establishing compliant service of process by a preponderance of the evidence. (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160.) Here, Plaintiff Castulo Eden Verduzco Martinez carries this burden.

According to the proof of service, the manner of service was substituted service. (Aug. 18, 2026 Declaration of Anna Coughlin ("Coughlin Decl."), exh. A, § 5b.) A summons may be served in this manner "[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served[.]" (Code Civ. Proc., § 415.20, subd. (b)(1).) "Ordinarily, two or three attempts at personal service at a proper place and with correct pleadings should fully satisfy the requirement of reasonable diligence and allow substituted service to be made." (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 373.)

The process server's declaration states that he made three attempts to serve Ramos personally at Defendant Apolonio Avendanos Ramos' residence before leaving the papers with Ramos' mother after the third attempt. (Coughlin Decl., exh. A, p. 3.) Given that courts are "to construe the process statutes liberally to effectuate service and uphold the jurisdiction of the court if actual notice has been received by the defendant[.]" the Court finds the three attempts shown here sufficiently demonstrate reasonable diligence. (*Espindola v. Nunez* (1988) 199 Cal.App.3d 1389, 1393.)

To complete substituted service on a natural person, a copy of the summons and complaint must be left "at the person's dwelling house ... in the presence of a competent member of the household ... who shall be informed of the contents thereof ... and ... thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left." (Code Civ. Proc., § 415.20, subd. (b).)

The declaration states that the process server left a copy of the summons and complaint with Ramos' mother at Ramos' dwelling house, informed of the general nature of the papers, and then mailed copies to
